

4	Cerni vs. Karen A. Sunday & Associates, Inc. 2026-01561774	Motion to Strike – Anti SLAPP <i>Matter continued to 11/12/26.</i>
5	Estrada vs. General Motors LLC 2024-01447483	Motion for Attorney Fees Plaintiff Jesus Estrada’s motion for attorney fees and costs is GRANTED in part and DENIED in part. (Code Civ. Proc., §§ 1032, subd. (b) [prevailing party entitlement to costs generally], 1033.5, subd. (a)(10)(B) [recoverable costs may include attorney fees pursuant to statute]; Civ. Code, § 1794, subd. (d) [prevailing party in Song-Beverly action entitled to reasonable fees/costs].) Plaintiffs is awarded attorney fees in the amount of \$15,807.80, which the court finds were reasonably and necessarily incurred. The court finds that the hourly rates claimed by moving party’s attorneys are reasonable and commensurate with market rates in the Orange County area for comparable work. (<i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095 [reasonable hourly rate “is that prevailing in the community for similar work”]; <i>Syers Properties III, Inc. v. Rankin</i> (2014) 226 Cal.App.4th 691, 700 [“determination of the ‘market rate’ is generally based on the rates prevalent in the community where the court is located”].) The court has also somewhat reduced the time claimed by moving party’s attorneys for tasks that appear clerical and/or administrative in nature, entries related to different client, time spent on discovery, and for anticipated time in connection with the instant motion, which appear somewhat excessive. (See <i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095 [court’s broad authority to determine reasonable fees]; <i>Serrano v. Unruh</i> (1982) 32 Cal.3d 621, 635, FN 21 [clerical tasks should generally be considered overhead and included in counsel’s hourly rate]; <i>Save Our Uniquely Rural Community Environment v. County of San Bernardino</i> (2015) 235 Cal.App.4th 1179, 1187 [trial court did not abuse discretion in reducing fees billed at partner rates for “researching and calendaring all deadlines”].) Otherwise, after review of moving parties’ billing records (Ex. A to motion), the court finds the remaining billing entries and time claimed to be reasonably and necessarily incurred. Moving party’s request for a multiplier is DENIED. This is a routine lemon law case, with no unusual facts or novel legal issues requiring exceptional skill. Further, the only evidence provided as to multiplier factors is contingency (Acosta Decl., ¶¶ 11-12); there

		is no evidence as to other multiplier factors. (<i>Mikhaeilpoor v. BMW of North America, LLC</i> (2020) 48 Cal.App.5th 240, 248, citing <i>Press v. Lucky Stores, Inc.</i> (1983) 34 Cal.3d 311, 322, fn. 12 [aside from contingency, other multiplier factors include “the novelty and difficulty of the questions involved, and the skill displayed in presenting them,” and “the extent to which the nature of the litigation precluded other employment by the attorneys”]; see also <i>Weeks v. Baker & McKenzie</i> (1998) 63 Cal.App.4th 1128, 1174-1175 [availability of statutory fee recovery reduces risks associated with contingency].) As to the request for costs, the motion is DENIED. Moving party has already filed a Memorandum of Costs (Ex. B to motion; ROA 50), and no motion to tax was filed. Moving party provides no evidence of costs incurred other than those included in the Memorandum of Costs. (See <i>Smalley v. Subaru of America, Inc.</i> (2022) 87 Cal.App.5th 450, 457 [“In a claim under the Song-Beverly Act ... for purposes of that statute, expenses encompasses out-of-pocket expenses beyond the costs identified in Code of Civil Procedure section 1033.5;” other internal citations omitted.] To award the same costs for the instant motion as listed in the Memorandum of Costs, would be a double recovery. Moving party shall give notice.
6	Nikova vs. Mercedes-Benz USA LLC 2026-01569577	Motion to Compel Arbitration Defendant Mercedes-Benz USA LLC’s motion to compel arbitration is GRANTED. (9 U.S.C, § 2 [authorizing motion]; <i>Victrola 89, LLC v. Jaman Properties 8 LLC</i> (2020) 46 Cal.App.5th 337, 345-346 [Federal Arbitration Act (FAA) governs where arbitration clause states it applies]; <i>Maxwell v. Atria Management Co., LLC</i> (2024) 105 Cal.App.5th 230, 249 [“the procedural aspects of the FAA do not apply in state court absent an express provision in the arbitration agreement;” not present here]; <i>Rosenthal v. Great Western Fin. Securities Corp.</i> (1996) 14 Cal.4th 394, 407–408 [even where the FAA substantively applies, it “does not explicitly govern the procedures to be used in state courts,” and thus the procedural rules set forth in the California Arbitration Act (CAA) apply]; Code Civ. Proc., § 1281.2 [authorizing motion to compel arbitration].) Moving party has met its initial burden of presenting evidence of an executed arbitration agreement requiring arbitration of plaintiff’s claims in this action. (<i>Rosenthal v. Great Western Fin. Securities Corp.</i>, <i>supra</i> at 413 [moving party’s initial burden to